BEFORE THE BOARD OF COUNTY COMMISSIONERS
For Josephine County, Oregon

IN THE MATTER OF AN APPEAL OF A DIRECTOR'S DECISION TO DENY A NON-FARM DWELLING APPELLANT: DIRLING REVOCABLE LIVING TRUST APPLICANT/OWNER: DIRLING REVOCABLE LIVING TRUST APPELLANT REPRESENTATIVE: JUSTIN GERLITZ, GERLITZ ENGINEERING CONSULTANTS LEGAL: T 36, R 06, Sec 15-C0, TL 2800	}	FINDINGS OF FACT & DECISION

SECTION 1. APPLICATION INFORMATION

1.1 The appellant is Dirling Revocable Living Trust 560 NE F St Grants Pass, Or 97526

1.2 The applicant/owner is Dirling Revocable Living Trust 560 NE F St Grants Pass, Or 97526

1.3 An application for a non-farm dwelling business was submitted by Dirling Revocable Living Trust on February 6, 2026.

1.4 The address for the property is Lower River Rd. and it is described in the Assessor's records as Township 36, Range 06, Section. 15-C0, Tax Lot 2800. The zoning designation on the property is Exclusive Farm (EF). **Exhibit A**

1.5 Notice of the request in conformance with Section 19.32.010 of the *Josephine County Code (JCC)* was mailed on March 17, 2026. The Director received comments in opposition within the comment period ending 5pm, April 1, 2026.

1.6 The Director reviewed the application and evidence regarding the non-farm dwelling against the criteria as set forth in Section 19.64.060, Section 19.64.070,A, Section 19.64.080, Section 19.69A.060, Chapter 19.76, and Chapter 19.83.020 and denied the request on May 22, 2026.

SECTION 2. APPEAL SUMMARY

2.1 Dirling Revocable Living Trust, filed an Appeal of the Director's Decision to the Josephine County Board of County Commissioners (BCC) on June 15, 2026.

2.2 The BCC conducted a "de novo" public hearing on August 10, 2026. Commissioners present to hear the matter were Ron Smith, Gary Richardson and Colene Martin. There was no objection to the authority of the BCC to hear the matter.

2.3 Oral testimony of Tami Smith, Senior Planner, presented the planning staff report to the BCC.

2.4 Oral testimony of Justine Gerlitz (representative for appellant) presented arguments in approving the non-farm dwelling.

2.5 Richard Vogel submitted a written technical opinion concerning soils and economic feasibility of farming the parcel.

2.6 Caleb Hunter submitted a written statement regarding farming experience and practical and economic feasibility of farming the property.

2.7 Written support in the record includes statements from Louis Hernandez, Emily Bertman, and Gabriell Frey.

2.8 Commissioner Richardson asked about the location of test pits, qualification of geologist, whether laboratory testing performed, irrigation water rights executed.

2.9 Justin Gerlitz responded test pits were disbursed across the parcel, no laboratory analysis performed, water rights have been used.

2.10 Commissioner Martin asked whether other structures existed on the subject parcel, and purpose of the requested dwelling.

2.11 Justin Gerltiz responded no other structures currently exist on the subject property, and proposal is for on single family dwelling.

2.12 Commissioner Smith asked about the zoning and soil classifications of nearby residential properties and noted the presence of existing residences on properties surrounding the Exclusive Farm Use area.

2.13 Jim Dole, attorney appeared on behalf of landowners Lindi and Buck Baker that record did not establish parcel generally unsuitable for farm use.

2.14 Oral testimony of Buck Baker in opposition describing the agriculture character of the area.

2.15 Oral testimony of Lindi Baker in opposition stated agriculture operations exist on nearby parcels.

2.16 James Black, Planning Director addressed the soil report, submitted to the record, and the state maintains a list of qualified soil professionals authorized to change map soil qualifications.

2.17 Rebuttal from Justin Gerlitz the appellant was not asking the rezone property or formally reclassify the soil, but rather Board to determine whether the parcel is generally unsuitable for farming.

2.18 Surrebuttal for opponents James Dole, attorney supplemental geologic evidence did not satisfy the statutory requirements governing soil determinations.

2.19 Summation was provided by Justin Gerlitz and summarized that the appellant was not asserting the no farm soils exists, but the parcel is generally unsuitable for farming.

2.20 Summation from the appellant stating that unable to find farmers willing to use the property for farming.

2.21 Jim Dole, attorney summarized the appellant had not met the burden of proof under the applicable criteria and request the Planning Directors denial be upheld.

2.22 Commissioner Richardson asked Planning staff to clarify when parcel was created.

2.23 Tami Smith, Senior Planner explained the property involved two existing legal lots and property line moved the boundary line and did not crate a new lot.

2.24 Commissioner Richardson state that the Board was required to apply the law and evidence of the record.

2.25 Commissioner Smith focused on surrounding residential uses, and unsuccessful attempts to have land farmed.

2.26 Chase Beguin, legal counsel advised Board that could deny the appeal based in the present record or continue the hearing.

2.27 Justin Gerlitz requested an additional seven days to address the soil evidence.

2.28 A motion was made to continue the hearing until Monday. August 17, 2026, at 10:00 a.m. and leave the evidentiary record open for additional evidence and testimony. The motion was seconded. Motion carried 3-0.

2.29 The hearing concluded the August 17, 2026 hearing session at 10:28 a.m.

2.30 Monday, August 17, 2026, Chair Smith reconveyed the continued Land Use Hearing at 10:00 a.m. The matter continued from August 10, 2026, with the evidentiary record remaining open for additional evidence and testimony.

2.31 Commissioner Martin recused herself from the continued land use hearing.

2.32 Justin Gerlitz presented supplemental information addressing the soil evidence and submitted a new soil analysis prepared by a DLCD-approved soil scientist. The analysis identified a portion of the property to the south as unsuitable for farming, and the applicant proposed relocating the dwelling to that area. Furthermore, the limited area available, access, surrounding uses, and drainage/flooding considerations should be evaluated.

2.33 Commissioner Richardson asked the difference between the subject property and historical approval for the neighbor's property, including the existence of irrigation rights.

2.34 Justin Gerlitz, acknowledged the subject property has irrigation rights, and that the applicants will move home site to conform with to the new soil analysis.

2.35 Jim Dole, attorney stated that the new soil report and relocation of dwelling were substantial new information and had not had a fair opportunity to review before the hearing.

2.36 Buck Baker spoke in opposition and described the flooding and soil disburbance.

2.37 Tami Smith, Senior Planner advised that relocation the dwelling did not require a new application, but additional time could be provided for review.

2.38 Chase Beguin, legal counsel stated the supplemental report appeared to address the previously identified soil documentation issue, but the proposed new home site would need to evaluated for floodway and related site requirements. State that a further continuance could allow both the opponents to review the new material.

2.29 Commissioner Richardson asked counsel to address several threshold legal questions.

2.30 Chase Beguin, legal counsel stated that additional research would be necessary.

2.31 Lindi Baker, opponent submitted additional written material for the record.

2.32 Herman Baertschiger spoke in opposition and that he farmed the subject property and neighboring properties and is productive agricultural land with strong irrigation rights.

2.33 Justin Gerlitz, addressed the soils and the homesite could be addressed through normal building/site plans and updated floodway review process and that the application satisfies the non-farm dwelling criteria.

2.34 Commissioner Richardson and Commissioner Smith agreed that the newly submitted information required additional time for review.

2.35 A motion was made to continue the hearing until Monday. September 21, 2026 at 10:00 a.m. and leave the evidentiary record open for additional evidence and testimony. No final deliberation or decision of the appeals was made, and no formal motion or roll call vote was taken on the continuance.

2.36 The hearing concluded the August 17 hearing session at 10:44 a.m.

2.37 Monday, September 21, 2026, Chair Smith reconveyed the continued Land Use Hearing at 10:00 a.m. The matter continued from August 17, 2026, with the evidentiary record remaining open for additional evidence and testimony.

2.38 Additional written information was had been received.

2.39 Commissioner Richardson, confirmed he had reviewed the additional material and asked if whether the competing soil experts had physically inspected the test pits or relied on written record.

2.40 Jim Dole stated that neither of the soil experts had physically inspected the test pits and argued the Planning Directors denial should be upheld.

2.41 Justin Gerlitz, responded that the request for a non-farm dwelling rather than a rezone and argued the soil data submitted was sufficient for a non-farm dwelling.

2.42 Jim Dole, responded the record contained substantial evidence of agriculture capability and prior farm use.

2.43 Commissioner Smith stated he was inclined to support the Planning Directors decision and deny the appeal.

2.44 Commissioner Richardson stated that he was inclined to allow the non-farm dwelling noting the competing evidence and County's ability to exercise judgment.

2.45 Upon a motion by Commissioner Smith to deny the appeal and deny the application for a non-farm dwelling, the BCC voted 1-1 resulting in a split vote per rule resulting in denying the Appeal application. The Board acting on a "De Novo" procedure, hence upheld and denies the application for placement of a non-farm dwelling.

2.46 Minutes along with all other documentation and evidence received and reviewed as part of this action for the hearing held on August 10, 2026, August 17, 2026, and September 21, 2026 are incorporated into these findings by reference.

SECTION 3. STANDARDS & CRITERIA

3.1 Section 19.64.060 – General Requirements for New Dwellings

A. The proposed non-farm dwelling will not force a significant change in or significantly increase the cost of accepted farm or forest practices on surrounding lands devoted to farm or forest use;

Board Finding: *Based on the surrounding development pattern, there appears to be minimal active farm or forest use in the immediate vicinity. The subject parcel is bordered by existing rural residential development on three sides, with the Rogue River located to the south. The development does not appear to adversely affect or increase the cost of accepted farm or forest practices on surrounding resource lands.*

B. As condition of approval, the landowner for the dwelling shall sign and record in the county deed records a document binding the landowner, and the landowner's successors in interest, prohibiting them from pursuing claim for relief or cause of action alleging injury from farming or forest practices for which no action or claim is allowed under ORS 30.936 or 30.937.

Board Finding: *If the application had been approved, the applicant would be required to submit a signed, notarized, and recorded Waiver of Remonstrance Regarding Dwellings in Farm Use.*

3.2 Section 19.64.070.A – Standards and Criteria for Non-Farm Dwellings

A. **Dwellings Not in Conjunction with Farm Use (Non-Farm Dwellings).** One single-family residential dwelling not provided in conjunction with commercial farm use, based on findings demonstrating that all of the following requirements are met:

1. The dwelling is situated upon a lot or parcel, or a portion of a lot or parcel, which is generally unsuitable land for the production of farm crops and livestock or merchantable tree species, considering the terrain, adverse soil or land conditions, drainage and flooding, vegetation, location and size of the tract.

   a. A lot or parcel or portion of a lot or parcel shall not be considered unsuitable solely because of size or location if it can reasonably be put to farm or forest use in conjunction with other land; and

   b. A lot or parcel or portion of a lot or parcel is not "generally unsuitable" simply because it is too small to be farmed profitably by itself. If a lot or parcel or portion of a lot or parcel can be sold, leased, rented or otherwise managed as a part of a commercial farm or ranch, then the lot or parcel or portion of the lot or parcel is not "generally unsuitable." A lot or parcel or portion of a lot or parcel is presumed to be suitable if it is composed predominantly of Class I-IV soils. Just because a lot or parcel or portion of a lot or parcel is unsuitable for one farm use does not mean it is not suitable for another farm use; or

   c. If the parcel is under forest assessment, the dwelling shall be situated upon generally unsuitable land for the production of merchantable tree species recognized by the forest practices rules, considering the terrain, adverse soil or land conditions, drainage and flooding, vegetation, location and size of the parcel. In addition:

      [1] If a lot or parcel is under forest assessment, the area is not "generally unsuitable" simply because it is too small to be managed for forest production profitably by itself. If a lot or parcel under forest assessment can be sold, leased, rented or otherwise managed as a part of a forestry operation, it is not "generally unsuitable."

      [2] If a lot or parcel is under forest assessment, it is presumed suitable if it is composed predominantly of soils capable of producing 50 cubic feet of wood fiber per acre per year;

   d. If a lot or parcel is under forest assessment, a finding must be made that the dwelling is compatible with and will not seriously interfere with forest uses on surrounding lands and will not force a significant change in forest

practices or significantly increase the cost of those practices on the surrounding lands.

Board Finding: *The subject property is approximately 2.71 acres in size and contains two mapped soil types: Camas gravelly sandy loam (14), comprising approximately 16 percent of the site and rated as Class IV if irrigated and non-irrigated, and Newberg fine sandy loam (57), comprising approximately 84 percent of the site and rated as Class II if irrigated and non-irrigated. Because the parcel is composed predominantly of Class I–IV soils, the parcel is presumed to be suitable for farm use pursuant to the applicable code criteria.*

The proposed homesite is located within the portion of the property mapped as Newberg fine sandy loam, which is rated as Class II soil and is generally well suited for irrigated hay and pasture production. In addition, the Josephine County soil mapping indicates that the majority of the property consists of prime soils if irrigated, and the property has water rights through the Fort Vannoy Irrigation District under Certificate 85233.

Although the parcel is physically separated from adjacent resource lands by existing development features, including a shared asphalt driveway to the west serving multiple residences and an irrigation canal to the north, the BCC could not determine that the parcel or portion of the parcel cannot reasonably be sold, leased, rented, or otherwise managed as part of a commercial farm or ranch operation due to the predominance of Class I–IV soils and the agricultural capability classifications of the property.

According to the Josephine County Assessor's records, the property is not currently under forest assessment; therefore, the provisions of Section 19.64.070(A)(1)(c) and (d), JCC, do not apply.

2. The dwelling will not materially alter the stability of the overall land use pattern on the area subject to OAR 660-033-0130(4)(c)(C).

Board Finding: *The applicant submitted a cumulative impacts and land use pattern analysis to evaluate whether the proposed nonfarm dwelling would materially alter the stability of the surrounding land use pattern, as required by OAR 660-033-0130(4)(c)(C). The study area encompasses approximately 2,036.91 acres of adjacent and nearby properties and includes 183 Exclusive Farm (EF) zoned tax lots. Within the study area, 126 tax lots contain existing dwellings and 57 tax lots do not contain dwellings. Of the 126 developed lots, 87 were identified as containing farm dwellings and 39 were identified as containing nonfarm dwellings. Farm versus nonfarm dwelling status was evaluated using available Josephine County Assessor records and corroborated with aerial and historical imagery where necessary. The analysis demonstrates that approximately 68 percent of the parcels within the study area contain dwellings, with an average parcel size of approximately 11.13 acres. This reflects an established pattern of rural residential development within the EF zone rather than large contiguous blocks devoted exclusively to commercial agricultural use. The applicant also evaluated the 57 undeveloped parcels within the study area to determine their potential eligibility for nonfarm dwellings. The evaluation considered predominant soil classifications, whether the parcels could reasonably be managed in conjunction with adjacent farm operations, the character of surrounding land uses, and the existing development pattern in the vicinity. Based on those factors, the analysis concluded that approximately six parcels*

within the study area may potentially qualify for nonfarm dwellings. Based on the evidence submitted, the proposed dwelling does not appear likely to materially alter the stability of the overall land use pattern within the surrounding area subject to OAR 660-033-0130(4)(c)(C).

3. The dwelling will be sited on a lot or parcel created before January 1, 1993, or on a lot or parcel created after January 1, 1993, when the lot or parcel was created in conformance with the requirements of Section JCC 19.64.090.C.

Board Finding: *Planning and Assessor records indicate that the subject parcel (Tax Lot 2800) was originally created by Warranty Deed (V327 P786) on October 27, 1977. The parcel was subsequently reconfigured through Partition Plat 2025-31 on September 16, 2025, resulting in its current size of 2.71 acres. Because the parcel was originally created prior to January 1, 1993, and the subsequent reconfiguration was completed in conformance with applicable County land division requirements,*

4. A non-farm dwelling may not be approved on a lot or parcel that is already established with a single-family dwelling is established on a lot or parcel as a lot of record dwelling per subsection 19.64.070.B, JCC.

Board Finding: *Planning and Assessor records indicate that the parcel is currently vacant, and no other dwelling exists on the property.*

5. Applicant shall submit proof that the lot or parcel has been disqualified for valuation for farm use under ORS 308A.050 to 308A.128 or other special assessment under ORS 308A.315, 321.257 to 321.390, 321.700 to 321.754 or 321.805 to 321.855. and any additional tax imposed as the result of disqualification has been paid pursuant to the requirement of ORS 215.236.

Board Finding: *Per the Josephine County Assessor records the subject property is not receiving special farm assessment.*

3.3 Section 19.64.080 – Siting Standards

A. The dwelling or activities associated with the dwelling will not force a significant change in or significantly increase the cost of accepted farming or forest practices on nearby lands devoted to farm or forest use;

Board Finding: *If this application had been approved it does not appear that the proposed development would materially interfere with accepted farm or forest practices in the area.*

B. The placement of dwellings shall be located on the least productive, buildable portion of the parcel taking into consideration terrain, adverse soil or land conditions, drainage and flooding, access, vegetation, location and the size of the tract;

Board Finding: *The applicant has submitted a no-rise certification prepared by a registered engineer in accordance with Chapter 19.69A, JCC. Any change in homesite location requires a new study.*

C. A lot or parcel shall not be considered unsuitable solely because of size or location if it can be reasonably be put to farm or forest use in conjunction with other land.

Board Finding: *The subject parcel is not considered unsuitable solely because of its size or location. Based on the mapped soil classifications, including the presence of Class II and other agriculturally capable soils, the parcel appears to be capable of being reasonably put to farm or forest use in conjunction with other land.*

D. If the parcel is under forest assessment, the dwelling shall be sited upon generally unsuitable land for the production of merchantable tree species recognized under the Forest Practice Rules considering terrain, adverse soil or land conditions, drainage and flooding, vegetation, location and size of the parcel;

Board Finding: *Per the Josephine County Assessor records the subject property is not receiving special forest assessment.*

E. The dwelling will not materially alter the stability of the overall land use pattern of the area;

Board Finding: *As discussed above, the dwelling does not appear to materially alter the stability of the overall land use pattern in the area.*

F. If the dwelling is established under JCC 19.64.070.A or B, then additional dwellings may not be approved or sited.

Board Finding: *No additional dwellings were proposed.*

3.4 Section 19.69A.060 – Administration in floodway areas

The property contains the floodplain of the Rogue River. The proposed home-site is entirely within the floodway. The structure shall be located at the site which is least impacted by inundation. The dwelling shall meet all development permit requirements of Section 19.69A.080 *JCC* and all property development standards of Section 19.69A.090 *JCC.*

Board Finding: The *applicant submitted a No-Rise Flood Analysis prepared by the Galli Group, which appears to demonstrate that the proposed development will not result in an increase in base flood elevation within the floodway. However, if the application had been approved, the applicant would have been required to submit an application for a Technical Plan Review to the Planning Department for floodplain review and verification of compliance with Sections 19.69A.080 and 19.69A.090, JCC. Any change in homesite location requires a new study.*

3.5 Section 19.76.020.D – Wildfire and Emergency Safety Standards

New dwellings in any zone other than the forest zone shall demonstrate compliance with all of the applicable standards of Chapter 19.76 JCC.

Board Finding: *If the application had been approved, the applicant would have been required to submit a wildfire safety plan demonstrating compliance with the requirements of Chapter 19.76, JCC.*

3.6 Section 19.83.020 – Application of Standards (Erosion Control)

These standards apply to any land use application including development and construction which would require any grading or filling on slopes that are 15% or greater or soils that are granitic in composition as mapped by the NRCS except when authorized or regulated by the Oregon Forest Practices Act.

Board Finding: *The property contains granitic soils. If the application had been approved, the applicant would have been required to submit an erosion and sediment control plan.*

SECTION 4. EVIDENCE

4.1 The evidence received both in favor of the request and in opposition is contained in the Director's file, along with all other documentation and evidence received and reviewed as part of this action. Other documentation may include aerial photographs, zoning maps, soil books, water studies, resource maps and inventories, facility plans, reports or comments from other agencies, and other like materials. These materials, in addition to the Director's file, are made a part of these findings by reference.

SECTION 5. FINDINGS OF FACT

The BCC makes the following findings of fact in support of the decision:

5.1 The BCC received documentation and heard testimony in relation to a non-farm dwelling As indicated in Section 3 above, the BCC finds the application does not meet the standards and criteria for a non-farm dwelling.

SECTION 6. CONCLUSION

Approval of this application is based upon the following reasons:

6.1 Based on the preceding findings, the BCC concludes that the application does not meet the requirements and criteria for a non-farm dwelling in Section 3 above and the requirements of county ordinances and state law.

6.2 The decision is supported by substantial evidence in the record.

6.3 Upon a motion by Commissioner Smith to deny the appeal and deny the application for a non-farm dwelling, the BCC voted 1-1. Pursuant to the applicable voting rules, the split vote resulted in denial of the appeal. Acting under a "De Novo" review, the Board therefore upheld the Planning Director's decision to deny the application for the non-farm dwelling.

SECTION 7. DECISION

Based on the evidence and the findings of fact entered herein, the BCC by "De Novo" review procedures and a split vote (1-1) **DENIES** the request for a non-farm dwelling as described in Section 1.3.

The Board of County Commissioners confirm these findings of fact herein.

Done and dated this _____ day of _____, 2026.

JOSEPHINE COUNTY BOARD OF COMMISSIONERS

_____
Ron Smith, Chair

_____
Colene Martin, Vice-Chair

_____
Gary Richardson, Commissioner

_____
Chase Beguin, County Legal Counsel (Community Development Department)

Exhibit A – Site Map

4735 Lower River Rd

EXHIBIT A

EXHIBIT

S. 1/16 COR.

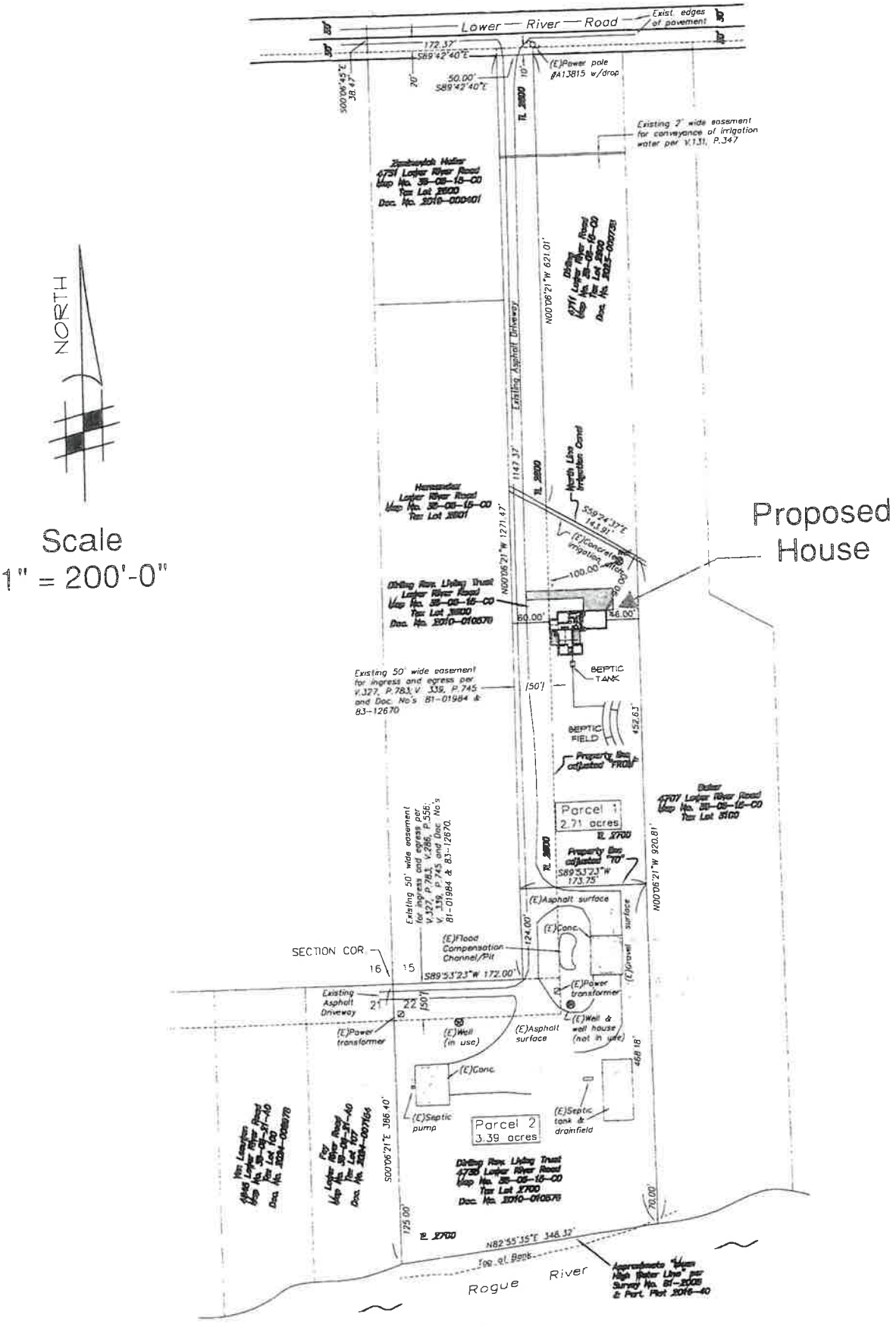


Exhibit D - 9

Item 2b1

Josephine County Board of Commissioners

AGENDA REQUEST FOR BOARD OF COMMISSIONERS

Agenda Requests are due by NOON on Monday of the week scheduled for Administration Workshop

Requests received after that time will be placed on the Administration Workshop agenda for the following week

If sending documents electronically – please send to these two:

kaustin@josephinecounty.gov nurbach@josephinecounty.gov

REVISED July 2025

Date Submitted to BCC	10/06/2026
Administration Workshop Meeting Date (Thursday)	10/13/2026
WBS Meeting Date (Wednesday) Note: Second Wednesday of the month is evening session	

AGENDA TITLE: Contract for Personal Services – Amendment 1	
Department/Contact Person (Include Title and Ext. #)	Scott Chancey, Transit Program Supervisor
Presenter (Include Name and Title)	Scott Chancey, Transit Program Supervisor
Background information	The Transit Department uses an independent 3rd party contractor to maintain/update/install IT equipment that is used on the actual transit vehicles. This equipment includes the camera system, tablets, Cradlepoints, interior digital signage and automatic passenger counters (APC's). The contract for the current contract expired in 2025 and needs to be renewed. The cost per hour for all work was increased form $100 to $125. The contract is still on a not to exceed $25,000 in total. The amount budgeted for this service in FY 26-27 was $7,000.
Action you are requesting from the Board	Signature on amendment
Reviewed by Finance Director *(If yes, Finance's signature required)*	NA – was included in FY 2026-2027 budget
Reviewed by Legal Counsel *(If yes, Legal's signature required)*	Yes
Reviewed by Information Technology *(If yes, IT's signature required)*	NA
Total Revenue, Cost, or Pass-Thru Funds to the County	Not to exceed $25,000
Notes or Special Instructions to BCC Staff	Return signed agreement to Transit Dept.

Title of Document(s) Submitted All exhibits must be clearly marked	Number of original documents submitted	Are all signatures on the documents? Y/N or BCC only	Are additional signatures needed? Y/N	Will a state or federal agency be signing the document? Y/N	Will additional signatures be received electronically? Y/N
Contract for Personal Services, Amendment 1	1	Y	N	N	N

DOCUMENT DISTRIBUTION: Board staff is required to submit one fully executed document with original Board signatures for recording in the Board's Journal in the County Clerk's Office unless otherwise specified under Notes or Special Instructions to BCC Staff.

- **All Signatures:** If all signatures are obtained, one fully executed original document will be filed in the Board's Journal in the County Clerk's Office and all other originals will be returned to the contact person. If only one original was submitted, an electronic copy will be returned to the contact person.
- **Additional Signatures Needed on Original Documents:** Board staff will retain one document with original Board signatures and return the additional originals to the contact person to obtain the remaining signature(s). Upon department receipt of the fully executed

INSTRUCTIONS FOR COMPLETING THE AGENDA REQUEST	
The AGENDA REQUEST form is to provide the Board with the background, description, and a recommendation of the item you are placing before the Board, and to provide Board staff with appropriate agenda titles, information regarding document signatures, and document distribution.	
Date submitted to BCC	Date submitted to BCC staff.
Requested Administration Workshop Meeting Date	Scheduled for each Thursday at 9:00 a.m. All items to be placed on WBS must first be reviewed by the Board at this workshop prior to the requested WBS date.
Requested WBS Meeting Date	Scheduled for each Wednesday at 9:00 a.m. with the exception of the second Wednesday of the month at 5:30 p.m. Any changes to the scheduled times will be announced by Board Staff.
AGENDA TITLE EXAMPLES	*Resolution (Order or Ordinance) 2014-000 In the Matter of Authorization of Execution of Lease Agreement (use full title)* *Provider Agreement between Josephine County and Siskiyou Community Health Center for Healthy Start Program* *IGA # 1234 between the State of Oregon and Josephine County for Juvenile Justice Services* *Amendment #2 to IGA #1234 between Josephine County and Darrell and Darrell Construction* *Grant Agreement #3456 between the State of Oregon and Josephine County for Emergency Services* *Contract between Josephine County and Jane Jones Construction for Courthouse Demolition Project* *Software Service Agreement between Josephine County and John Smith Software Company for the Board of Commissioner's Office*
Department/Contact Person (Include Title and Ext. #)	Name of the Department and Contact Person submitting the request. This person should be available for questions from BCC staff regarding information submitted. Include name, title, and extension #.
Presenter(s)	This person(s) will attend the meetings to explain the request to the Board. Include name and title.
Background information	Provide information sufficient for the Board to understand the issue. Provide any helpful background information that may assist the Board in making a decision. If there were prior meetings or workshops with the BCC, include previous discussions. Explain whether there are any restrictions or factors that may affect the decision of the Board. Include any supporting information or supporting documents for the item. Clearly mark supporting documents to prevent them from being unnecessarily recorded with original documents.
Action you are requesting from the BCC	Indicate whether you want the Board to sign a document, ratify a signature, approve an order, resolution, etc., or authorize someone else to sign a document.
Review by Finance Director	The Finance Director will review the item for budget reasons and financial impact. After review the Director is required to sign the form. If the item has no financial impact or no need for financial review, mark N/A.
Review by Legal Counsel	Legal Counsel will review the item to insure that all legal requirements have been met, the item is pre-approved as to form, and that the County may legally enter into an agreement or other document with legal impact. After review Legal Counsel is required to sign the form. If the item has no need for legal review, mark N/A.
Review by Information Technology	The Technology Director will review the item if it involves software, hardware, etc. to insure compatibility with the County's current systems.
Revenue, Cost, or Pass-Thru Funds to County	Indicate whether the item has a revenue or cost to county, the dollar amount, and if it is pass-through funds. Indicate the amount of any matching funds that may be required.
Title of Documents submitted	List each documents submitted. If the body of a document refers to exhibits that are attached, make sure that all exhibits are actually attached and identified as exhibits, preferably at the bottom right-hand side of the page (for example: Exhibit A, Page 1).
# of original documents submitted	List the number of originals you are submitting. Remember the Board will retain one original (with BCC signature) at all times whether fully executed or not.
Are all signatures on the documents?	All signatures must be obtained before submitting the document. Mark NO if this is a state or federal contract; the document can be submitted without first obtaining state or federal agency signature. Mark BCC only if the document will require only BCC signature, such as a deed, order, ordinance, etc.
Will a state or federal agency be signing the document?	Mark yes or no; this is for state or federal contracts submitted.
Are additional signatures needed?	Mark yes or no; this is for state or federal contracts submitted. All other agencies must sign first.
Will additional signatures be received electronically?	This is only for contracts with state or federal agencies that return fully executed original documents electronically. If you answer YES to this question, the Board will retain one original (with BCC signature) and return one original electronic document to the contact person to obtain signature by the state or federal agency. Upon receipt of the fully executed document (electronic version), the contact person must forward it to Board staff for recording in the Board's Journal in the County Clerk's office.

CONTRACT FOR PERSONAL SERVICES
Amendment No. 1

This Amendment No. 1 is made to the Contract for Personal Services dated December 19, 2024, between Josephine County ("County") and BC ELECTRONICS, LLC ("Contractor". The parties agree as follows:

A. **Section 1 is amended as follows:** This contract shall commence on ~~the date last signed below~~ December 19, 2024, and shall continue until December 31, ~~2025~~2027, unless terminated or extended as provided herein.

B. **Section 5b is amended as follows:** County shall pay Contractor the amount of ~~$100~~ $125 per hour of service provided. County shall make payment within 20 days of receipt of the invoice. County may require contractor to provide supplementary information if the request is inadequate for evaluating a request for payment.

C. **AFFIRMATION:** Except as otherwise amended herein, the Contract for Personal Services between the parties, dated December 19, 2024, remains in full force and effect as originally signed, and is incorporated herein by reference.

BC ELECTRONICS, LLC.

Brandon Poag-Crozier

Date

JOSEPHINE COUNTY
BOARD OF COMMISSIONERS

Ron Smith, Chair

Colene Martin, Vice-Chair

Gary Richardson, Commissioner

Date

Approved as to form:

M. Wally Hicks, County Legal Counsel

CONTRACT FOR PERSONAL SERVICES
Josephine County, Oregon

This Contract for Personal Services is made by and between JOSEPHINE COUNTY, a political subdivision of the State of Oregon ("County", and BC ELCTRONICS, LLC ("Contractor"). The parties agree as follows:

1. **Term**

   This Contract shall commence on the date last signed below, and shall continue until December 31, 2025, unless terminated or extended as provided herein.

2. **Contract Administrator**

   The Josephine County Transit Manager shall be the contract administrator and be authorized to request, oversee, and approve services.

3. **Services**

   Contractor shall provide vehicle IT services for the Josephine County Transit program. Contractor shall provide vehicle IT services that include the camera system, the vehicle Cradlepoint system, the vehicle Swiftly system, and all software updates across all platforms. The Contractor is also responsible for configuring and monitoring in-vehicle hardware related o the property function of the platforms as well. The Contractor shall make available all passwords and login administrator settings available to the Contract Administrator as they change, or as systems are replaced.

   Contractor may provide other vehicle-related services as requested by the Contract Administrator.

   a. **Hours**

      Contractor shall install, replace, update, and make operable any of the Transit vehicle IT systems on an ongoing basis. If a system is not functioning correctly, upon request by the Contract Administrator, the Contractor shall make said system operable within 24 hours.

   b. **Equipment and Supplies**

      County shall provide all software, hardware, and support equipment as needed.

   c. **Safety**

      Contractor shall be responsible for providing the services in a safe and responsible manner, in conformance with generally accepted safety practices for such activities, and in a manner that does not endanger the health, safety, or welfare of any person. Contractor shall provide and properly use any required safety equipment.

   d. **Licenses**

      Contractor and its employees shall hold all licenses, certificates, authorizations, and other approvals required by applicable law to provide the services under this

Contract, and shall maintain such licenses and certificates in good standing for the duration of this Contract.

4. **Independent Contractor**

   Contractor shall perform the services required by this Contract as an Independent Contractor, and not as employee of the County.

5. **Payment**

   County shall pay Contractor as follows:

   a. On or before the 30th day of each month, Contractor shall submit to the County a request for payment, indicating the services performed, by whom, and the date the services were performed.

   b. County shall pay Contractor the amount of $100 per hour of service provided. County shall make payment within 20 days of receipt of the invoice. County may require Contractor to provide supplementary information if the request is inadequate for evaluating a request for payment.

   c. Total payments to Contractor under this Contract shall not exceed the sum of $25,000.

   d. The County shall not be required to make any expenditure under this Contract if funds have not been appropriated pursuant to ORS 294.305 et seq. (Local Budget Law). The County shall not be indebted or liable for any obligation created by this Contract in violation of the debt limitation provisions of Article XI, Section 10 of the Oregon Constitution.

6. **Records Maintenance**

   Contractor shall retain and keep accessible all books, documents, papers, and records that are directly related to this Contract, the funds paid to Contractor, or any service delivered under this Contract for a minimum of six (6) years following the termination of this Contract. If there are unresolved audit or other questions ad the end of the six-year period, Contractor shall retain the records until the questions are resolved.

7. **Insurance**

   a. **Workers' Compensation Insurance**

      Contractor shall obtain and maintain Workers' Compensation Insurance as required by law.

   b. **General Liability Insurance**

      Contractor shall obtain, at Contractor's expense, and keep in effect during the term of this contract, Commercial General Liability Insurance covering Bodily Injury and Property Damage on an "occurrence" form. This coverage shall include Contractual Liability insurance for the indemnity provided under this contract and Product and Completed Operations if available. Such insurance shall be primary and non-

contributory. Coverage shall be a minimum of $2,000,000 per occurrence, and $2,000,000 aggregate.

c. Certificates of Insurance

All insurance policies shall be evidenced by Certificates of Insurance which shall be delivered to the County prior to commencing services or work under this Contract. Each certificate or policy shall require that, thirty (30) days prior to cancellation or material change in the policies, notice of cancellation or material change must be given to the County by first class mail and/or email transmission. All such notices shall name the Contractor and identify the contract number.

d. Additional Named Insured

All insurance policies must identify the contract number and name Josephine County as an additionally named insured and mut be through an insurance company licensed in the State of Oregon. The insurance policy shall provide that "Josephine County" shall include all authorities, boards, bureaus, commissions, divisions, departments, districts, and offices of Josephine County and the individual members, employees, and agents thereof in their official capacities.

8. Indemnification

a. Contractor shall defend, indemnify, and hold harmless County, its officers, agents, and employees, from any and all claims, liabilities, demands, damages, actions, or proceedings arising from or relating to the negligence, wrongful acts, or omissions of Contractor in connection with the performance of any services under this Contract.

b. County shall defend, indemnity, and hold harmless Contractor, its officers, agents, and employees, from any and all claims, liabilities, demands, damages, actions, or proceedings arising from or relating to the negligence, wrongful acts, or omissions of County in connection with the performance of any services under this Contract.

c. Contractor shall not be deemed an agent of County under the Oregon Tort Claims Act.

9. Termination

a. For Convenience

This Contract may be terminated by either party upon ten (10) days' written notice to the other party.

b. For Cause

Either party may terminate this Contract, in whole or in part, effective upon delivery of written notice to the other party at such later date as may be established upon occurrence of any of the following:

i. If funding to the County is not obtained or is not continued at levels sufficient to pay for services authorized by this Contract.

ii. If changes in federal or state law or regulations abrogate or disallow procurement of Contractor's services under this Contract.

iii. If any letter of approval, license, or certificate required by law or regulation to be held by Contractor in order to provide services under this Contract is denied, revoked, suspended, or not renewed.

iv. If a party fails to provide the services or perform the acts required under this Contract, and after receipt of written notice from the other party, fails to correct such failure within thirty (30) calendar days or such other period as required. Written notice shall specify the nature of the breach with reasonable particularity. If the breach specified in the notice cannot be completely cured within the thirty-day period, but curative action is undertaken with reasonable diligence, then such breach shall not constitute a default. Time is of the essence of this contract.

If practicable, the parties shall endeavor to give notice of termination under this section thirty (30) days prior to the termination date, but failure to give notice within that time frame shall not invalidate the legal termination of this Contract.

c. Material Breach

Either party may declare a default immediately upon the occurrence of a material breach by the other party. A material breach is one that substantially impairs the contractual relationship of the parties to provide the services pursuant to this Contract, and includes, but is not limited to: A) Acts or omissions that jeopardize the health, safety, or security of any person; B) Misuse of funds; C) Intentional falsification of records; D) Malfeasance by either party's officers, agents, or employees; E) Intentional refusal to comply with the provisions of this Contract; and/or F) A pattern of repeated non-material breaches.

d. In the event of a default, the party injured by the default may terminate this Contract and pursue any remedies available under Oregon law. Any litigation must be conducted in Circuit Court of the State of Oregon for Josephine County.

e. The rights and remedies of the parties provided herein are not exclusive and are in addition to any other rights and remedies provided by law.

f. Liability of County

The Couty's liability for monetary damages for breach of this Contract shall, in the aggregate, be limited to the payment amount of this Contract. In no event shall the County be liable to Contractor for any indirect, special, or consequential damages, notwithstanding any notice of the possibility of such damages.

10. Compliance with Law

County and Contractor shall comply with all applicable federal, state, and local laws, statutes, ordinances, rules, and regulations.

11. Governing Law

This Contract shall be governed by and construed in accordance with the laws of the State of Oregon.

12. Force Majeure

Neither County nor Contractor shall be held responsible for delay or default caused by fires, riot, civil disobedience, acts of God, or war where such cause was beyond the control of either party. Both parties shall, however, make all reasonable efforts to remove or eliminate such a cause of delay or default and shall, upon the cessation of the cause, diligently pursue performance of its obligations under this Contract.

13. Third Party Beneficiary

The County and Contractor are the only parties to this Contract and are the only parties entitled to enforce its terms. Nothing in this Contract gives any benefit or right, either directly or indirectly, or otherwise, to third persons.

14. Waiver

No waiver of any provision of this Contract shall bind either party unless in writing and signed by both parties. Such waiver shall be effective only in the specific instance and for the specific purpose given. The failure of the County to enforce and provision of this Contract shall not constitute a waiver by the County of that or any other provision.

15. Severability

If any term or provision of this Contract is declared by a court of competent jurisdiction to be illegal or in conflict with any law, the validity of the remaining terms and provisions shall not be affected, and the rights and obligations of the parties shall be construed and enforced as if the Contract did not contain the particular term or provision held to be invalid.

16. Assignment

Contractor shall not assign or transfer any interest in this Contract or enter into subcontracts for any part of the services without the prior written consent of County. The provisions of this Contract shall be binding upon and shall inure to the benefit of any successors and permitted assigns.

17. Further Assurances

The parties agree to promptly execute and deliver any such further instruments and to perform any such further acts as may be required to carry out the intent and purpose of this Contract.

18. Notices

Any notices required by this contract must be given in writing by personal delivery or by electronic mail to the following addresses. Any notices so mailed shall be deemed to be given the day it was delivered or emailed.

a. County's address for notices is:

Scott Chancey
Josephine County Transit Program Manager
SChancey@josephinecounty.gov

b. Contractor's address for notices is:

BC Electronics, LLC
1209 E Park Street
Grants Pass, OR 97527

19. Amendment

This Contract may be amended or modified at any time upon the written agreement of both parties, signed and executed in the same manner as below.

20. Time is of the Essence

The parties agree that time is of the essence with regard to performance of all obligations under this Contract.

21. Entire Contract

This Contract constitutes the entire agreement between the parties and supersedes any previous promises, representations, agreements, conditions, or understandings between the parties. There are no other promises, representations, agreements, conditions, or understandings, either oral or written, between the parties other than those set forth in this Contract.

CONTRACTOR:
BC Electronics LLC

Date:
12/23/2024

JOSEPHINE COUNTY
BOARD OF COMMISSIONERS

John West, Chair

Herman Baertschiger Jr., Vice Chair

Absent at Signing

Andreas Blech, Commissioner

Date: 12.19.24

Approved as to Form

County Legal Counsel

Item 2b2

Josephine County Board of Commissioners

AGENDA REQUEST FOR BOARD OF COMMISSIONERS

Agenda Requests are due by NOON on Monday of the week scheduled for Administration Workshop

Requests received after that time will be placed on the Administration Workshop agenda for the following week

If sending documents electronically – please send to these two:

kaustin@josephinecounty.gov nurbach@josephinecounty.gov

REVISED July 2025

Date Submitted to BCC	10/08/2026
Administration Workshop Meeting Date (Thursday)	10/13/2026
WBS Meeting Date (Wednesday) Note: Second Wednesday of the month is evening session	

AGENDA TITLE: Spare invoice SL 202609-1075	
Department/Contact Person (Include Title and Ext. #)	Scott Chancey, Transit Program Supervisor
Presenter (Include Name and Title)	Scott Chancey, Transit Program Supervisor
Background information	The Transit Dept. uses Spare to provide an online app for passengers to use for trip planning, real time bus arrival, ride booking and pass purchases. This is a year to year agreement. Invoice SL 202609-1075 is for payment to continue services for the next year. The prior year cost was $30,000, so this year's invoice represents a 5% increase in cost. This cost is consistent with app used prior to Spare One. The trip planning portion of the app allows a person to link together all public transit services being offered to complete a trip from point A to point B in real time. The real time bus arrival shows the fixed route system by route and allows person to look at any particular stop and see when the next bus will be arriving. The pass purchase allows for a user to buy a pass or trip ticket online and then show a dynamic pass image on their smart device to the Transit Operator when boarding. Spare collects the funds and then returns them, minus a service fee, to Josephine County. The funds to pay for this service and platform are included in the Transit budget for FY 26-27. There are no Josephine County general funds used for this program support.
Action you are requesting from the Board	Authorization to pay
Reviewed by Finance Director *(If yes, Finance's signature required)*	NA – was included in FY 2026-2027 budget
Reviewed by Legal Counsel *(If yes, Legal's signature required)*	Yes – original agreement 2025
Reviewed by Information Technology *(If yes, IT's signature required)*	NA
Total Revenue, Cost, or Pass-Thru Funds to the County	$31,500
Notes or Special Instructions to BCC Staff	none

Title of Document(s) Submitted All exhibits must be clearly marked	Number of original documents submitted	Are all signatures on the documents? Y/N or BCC only	Are additional signatures needed? Y/N	Will a state or federal agency be signing the document? Y/N	Will additional signatures be received electronically? Y/N
Spare SL202609-1075	1	na	N	N	N

INVOICE

Spare Labs Inc.
Suite 300 - 601 Hastings St W
Vancouver, British Columbia V6B 1M8
Canada

Invoice # **SL-202609-1075**
Invoice Date **Sep 03, 2026**
Invoice Amount **$31,500.00 (USD)**
Customer ID **2022-832**
Payment Terms **Net 30**
Due Date **Oct 03, 2026**
PAYMENT DUE

BILLED TO
Josephine County
500 NW 6th St.
Grants Pass, Oregon 97526
United States
schancey@co.josephine.or.us

SUBSCRIPTION
ID **SL-4328**
Billing Period **Jul 30, 2026 to Jul 29, 2027**

DESCRIPTION	UNITS	UNIT PRICE	AMOUNT (USD)
Spare One	1.0000	$31,500.0000	**$31,500.00**
		Sub Total	$31,500.00
		Total	**$31,500.00**
		Amount Due (USD)	**$31,500.00**

spare.

BEFORE THE BOARD OF COUNTY COMMISSIONERS FOR JOSEPHINE COUNTY
STATE OF OREGON

In the Matter of Continuing the Suspension of Acceptance of Applications for Mineral Exploration Permits and Mining Leases	)))	Order No. 2026-059

WHEREAS, by Board Order 2026-040, the Board of County Commissioners suspended the acceptance and processing of applications for mineral exploration permits, mining leases, and mining permits for a period of one year, until October 8, 2026; and

WHEREAS, the Board of County Commissioners intends to update Chapter 5.15 of the Josephine County Code which pertains to mining; and

WHEREAS, the consideration and approval of mineral exploration permits and mining leases costs public resources including staff time and consulting fees; and

WHEREAS, the Forestry Program should focus entirely on preparing and offering timber for sale as a steady and reliable source of revenue for the County;

NOW, THEREFORE, IT IS HEREBY ORDERED that the suspension of the acceptance and processing of applications for mineral exploration permits, mining leases, and mining permits be continued for an additional period of one (1) year, effective October 8, 2026; and

IT IS FURTHER ORDERED that any applications that are currently pending are to be returned to the applicant along with a full refund of money paid by the applicant to the County; and

IT IS FURTHER ORDERED that this suspension will remain in effect until October 8, 2027, unless it is revoked or extended by a formal act of the Board of Commissioners.

DONE AND DATED this _____ day of _____, 2026.

JOSEPHINE COUNTY
BOARD OF COMMISSIONERS

_____
Ron A. Smith, Chair

_____
Colene M. Martin, Vice Chair

_____
Gary L. Richardson, Commissioner

Item 3b

Josephine County Board of Commissioners
Ron Smith, Chair
Colene Martin, Vice-Chair
Gary Richardson, Commissioner
500 NW 6th Street
Grants Pass, OR 97526
541-474-5221

October 13, 2026

The Honorable Ron Wyden
United States Senate
221 Dirksen Senate Office Building
Washington, DC 20510

The Honorable Jeff Merkley
United States Senate
531 Hart Senate Office Building
Washington, DC 20510

The Honorable Mike Crapo
United States Senate
239 Dirksen Senate Office Building
Washington, DC 20510

The Honorable Jim Risch
United States Senate
483 Russell Senate Office Building
Washington, DC 20510

The Honorable Cliff Bentz
U.S. House of Representatives
409 Cannon House Office Building
Washington, DC 20515

RE: Support for Continued Secure Rural Schools Funding

Dear Senators Wyden, Merkley, Crapo and Risch and Congressman Bentz:

On behalf of Josephine County, we write to express our strong support for continuation of the Secure Rural Schools and Community Self-Determination Program beyond federal fiscal year 2026.

Josephine County has a substantial amount of federally owned, tax-exempt land. SRS funding helps provide stability for rural counties like ours by supporting roads, schools, public safety, emergency response, wildfire preparedness and other essential services that would otherwise be supported by a broader property-tax base.

We appreciate the bipartisan effort now underway to extend SRS for an additional three years. The October 1 legislation introduced by Senators Wyden, Merkley, Crapo and Risch is an important step toward preventing another lapse in funding.

Recent experience demonstrates why timely action is so important. SRS previously expired in 2023, and counties were required to operate for an extended period without certainty regarding future payments before Congress ultimately restored the program through FY2026.

For county governments, uncertainty itself has consequences. We develop budgets, maintain roads and infrastructure, provide emergency services, and make long-term financial commitments. Retroactive funding may ultimately restore revenue, but it does not provide the predictability necessary for responsible budgeting and planning.

We respectfully urge Congress to:

1. Reauthorize SRS beyond FY2026 without another lapse in authorization;
2. Support passage of the current three-year extension; and
3. Continue working toward a permanent or substantially longer-term solution that provides dependable funding for counties containing large amounts of federally owned land.

Josephine County recognizes the important role federal lands play in our community and our economy. At the same time, those lands are exempt from local property taxation, limiting the revenue available to provide the services residents rely upon. SRS has long helped address that imbalance.

We appreciate your continued work on behalf of Oregon's rural counties and welcome the opportunity to work with Oregon's congressional delegation, the Association of Oregon Counties, and other federal-land counties toward a sustainable long-term solution.

Respectfully submitted,

JOSEPHINE COUNTY BOARD OF COMMISSIONERS

_____
Ron A. Smith, Chair

_____
Colene M. Martin, Vice Chair

_____
Gary L. Richardson, Commissioner

Approved at a public meeting of the Board of Commissioners on October 13, 2026.

BEFORE THE BOARD OF COUNTY COMMISSIONERS FOR JOSEPHINE COUNTY STATE OF OREGON

In the Matter of an Appointment to the)
Property Value Appeals Board (PVAB)) **Resolution No. 2026-038**

WHEREAS, the Board of County Commissioners shall appoint pools of board members to the **PROPERTY VALUE APPEALS BOARD (PVAB)**; and

WHEREAS, it is both proper and necessary that the Board of County Commissioners appoint a pool of non-office holding residents of the County, who are not employees of the County or any taxing district with the County.

NOW, THEREFORE, IT IS HEREBY RESOLVED, that the following individual be appointed to the pool of the Property Value Appeals Board with a term expiring as hereinafter set forth.

APPOINTED TO SERVE A TERM ENDING June 30, 2028.

Daniel Wilson Grants Pass 97526

DONE and DATED this 13th day of October 2026.

JOSEPHINE COUNTY
BOARD OF COMMISSIONERS

_____
Ron Smith, Chair

_____
Colene Martin, Vice Chair

_____
Gary Richardson, Commissioner